

**MODEL NOTES**  
**[2026-27]**  
**UNIT-1 (BNC501)**  
**CONSTITUTION OF INDIA**  
**Dr. AKASHKUMAR@AKGEC**  
**(For Understanding, Learning & Practice)**

**TOPIC: CONSTITUTIONAL SCHEME IN INDIA**

The Indian constitutional scheme creates a parliamentary republic with a quasi-federal structure, blending both federal and unitary features. It establishes India as a Sovereign, Socialist, Secular, Democratic, Republic and defines the powers of the central and state governments through a written constitution. Key features include a parliamentary system, a strong central government, a single citizenship, a written and somewhat rigid constitution, an independent judiciary, and fundamental rights for citizens.

The constitutional scheme in India establishes a parliamentary, federal system with a written constitution, Fundamental Rights, a judicial review mechanism, and a separation of powers among its legislative, executive, and judiciary branches. India is a Sovereign Socialist Secular Democratic Republic, and the Constitution outlines the structure and functioning of the central and state governments, ensuring the rule of law and protecting citizens' rights and freedoms.

**Q1: Discuss the Key Features of Indian Constitutional Scheme?**

**Key Features of India's Constitutional Scheme**

- **Parliamentary Form of Government:** The government is parliamentary, with a President as the head of the state and a Council of Ministers led by the Prime Minister who are collectively responsible to the Lok Sabha (House of the People).
- **Federal Structure with Unitary Features:** India has a federal structure where powers are divided between the Union (Central) government and the States, but it also has unitary features, allowing for a strong central government when needed.
- **Written and Detailed Constitution:** The Constitution is a comprehensive, written document detailing the constitutional law of India and governing both the Union and State governments.
- **Fundamental Rights:** Part III of the Constitution guarantees fundamental rights to citizens, such as the right to equality, freedom of speech and expression, and freedom of religion.
- **Justiciable Rights:** These fundamental rights are justifiable, meaning citizens can approach the courts to enforce them if they are violated.
- **Judicial Review:** The Constitution establishes an independent judiciary that can invalidate any legislation or government action that violates the Constitution.
- **Separation of Powers:** The Indian Constitution divides governmental powers into three distinct organs: the legislature, the executive, and the judiciary, creating a system of checks and balances.
- **Sovereign Socialist Secular Democratic Republic:** The Constitution declares India to be a sovereign, socialist, secular, democratic republic, emphasizing its independent nature, commitment to social welfare, religious freedom, and democratic principles.

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## Q2: What is a Constitutional Amendment?

The process of making changes to the nation's fundamental law i.e. the Constitution is called a Constitutional Amendment.

The amendment procedure laid down for the amendment of India's Constitution is neither flexible as Britain's nor as rigid as the USA's but a synthesis of both.

This constitutional amendment procedure reflects the desire of the constituent legislative assembly to put in place a dynamic document.

Under Article 368 of the Indian Constitution, the Parliament can amend it and its procedures. Further, Parliament cannot amend those provisions which form the Basic Structure of the Constitution as ruled by the Supreme Court in the Kesavananda Bharati case (1973).

## Q3: What are the different ways to amend Indian Constitution?

Different ways in which Constitution can be amended are:

- By a simple majority of the Parliament: This refers to the majority of more than 50% of the members present and voting. Many articles in the Constitution mention that these articles can be amended by a simple law of the Parliament. No special procedure for amendment is required in such cases. Some examples are:
  - Article 2 - Admission or establishment of new states.
  - Fifth Schedule - Provisions as to the Administration and Control of Scheduled Areas and Scheduled Tribes.
  - Citizenship—acquisition and termination.
  - Elections to Parliament and state legislatures

Under Article 368: By a special majority of the Parliament: Majority of the total membership of each House and a majority of two-thirds of the members of each House present and voting. Examples include Fundamental Rights, Directive Principles of State Policy, etc.

By a special majority of the Parliament and the ratification of half of the state legislatures: States' ratification is through a simple majority. Provisions related to Federal structure are amended by this method. Examples are the election of the President and its manner, any of the lists in the Seventh Schedule, representation of states in Parliament, Article 368, etc.

## Q4: What is the procedure to amend the Indian Constitution?

The amendment procedure to amend the Constitution is as follows:

- Amendments can be initiated only by introducing a bill in either house of the Parliament.
- The bill can be introduced either by a minister or by a private member and does not require the prior permission of the President.
- The bill must be passed in each house by a special majority, that is, a majority of the total membership of the house and a majority of two-thirds of the members of the house present and voting.
- Each house must pass the bill separately. If there is any disagreement, there is no provision for a joint sitting of the houses.
- If the bill seeks to amend the provisions of the constitution, it must be ratified by the legislatures of half of the states by a simple majority.
- After the passage of the bill by both houses, it is presented to the President for his assent.
- The president must give his assent to the bill. He can neither withhold his assent to the bill nor return the bill for reconsideration by the Parliament.
- After the President's assent, the bill becomes a constitutional amendment act.

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Q5: What are the limitations on the amending power of the Parliament?

The amending power of the Parliament is limited by the doctrine of Basic Structure, propounded by the Indian Judiciary on 24th April 1973 in the Keshavananda Bharati case so that the 'Basic Structure of the Constitution' cannot be amended.

Thus, amendments under Article 368 are valid as long as they do not violate the basic structure of the Constitution. Further, the Supreme Court also held Article 368 as part of the Basic Structure.

Some of the significant judgments regarding the limitations of amending power of the Parliament are:

\* Minerva Mills vs. Union of India (1980): The Supreme Court invalidated provisions of the 42nd Constitutional Amendment Act, 1976 that declared no limitation to the constituent power of Parliament under article 368. The Supreme Court ruled that the Parliament cannot take away the power of 'judicial review' as it is a part of the 'Basic Structure'.

\* L. Chandra Kumar v. Union of India (1997): The Supreme Court held that Tribunals (Article 323A and 323B) are not a substitute for the power of judicial review that the Constitution has bestowed upon the High Courts.

\* I.R. Coelho v State of Tamil Nadu (2007): The Supreme Court held that Parliament cannot increase the amending power by amendment of Article 368 and destroy and damage the fundamentals of the Constitution.

\* The Constitution (99th Amendment) Act, 2014: provided for a National Judicial Appointment Commission (NJAC), was struck down by the Supreme Court on the grounds that it violated the "independence of the judiciary", which is a part of Basic Structure.

Q6: What are the criticisms of the amendment procedure under the Indian Constitution?

The amendment procedure of the Constitution has been criticized on the following grounds:

- States have no power to initiate amendments: The power to initiate an amendment to the Constitution lies with the Parliament. The state legislatures cannot initiate any bill.
- Exception: States can pass a resolution requesting the Parliament for the creation or abolition of legislative councils in the states.
- Parliament has powers to amend major parts: The major part of the Constitution can be amended by the Parliament alone. Only in a few cases the consent of half of the state legislatures is required.
- No time frame for ratification: The Constitution does not prescribe the time frame within which the state legislatures should ratify or reject an amendment submitted to them.
- No provision for joint sitting: There is no provision for holding a joint sitting of both Houses of Parliament if there is a deadlock over the passage of a constitutional amendment bill.
- The process of amendment is similar to that of a legislative process. Except for the special majority, the constitutional amendment bills are to be passed by the Parliament in the same way as ordinary bills.

Although having provisions to amend the constitution was progressive to the fathers of our nation, it is important that such provisions are not misused. Misuse could lead to undue legislative or executive authority that could rip apart the fabric of our society. An appropriate balance is thus needed to be maintained to ensure the living nature of our constitution.

Q7: Why the Indian Government is called a 'Prime Ministerial Government'?

A Prime Minister is the head of government in India's political setup. He is the de facto head of state.

- The Prime Minister is appointed by the President of India and is the leader of the party or coalition that holds the majority of seats in the Lok Sabha, the lower house of India's parliament.
- The Prime Minister is responsible for the administration of the government and serves as the chief spokesperson for the government's policies.
- Under Article 75, the Council of Ministers shall be appointed by the President on the advice of the Prime Minister.
- Also, Article 74(1) states that there shall be a Council of Ministers with a Prime Minister at the head to aid and advice the President. Thus, other ministers work under the direction of the Prime Minister.

Hence, in the parliamentary system of India, the role of the Prime Minister has become so significant and crucial that the form of government in India is called a 'Prime Ministerial Government'.

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Q8: What are the functions of State Cabinet in India?

The state cabinet in India, led by the Chief Minister, is responsible for formulating government policies, overseeing the administration of various departments, implementing policies and programs, and ensuring collective responsibility under the principle of responsible government. The cabinet functions as the key decision-making body within the state executive, with each minister leading a specific department to carry out its functions. Key Functions of the State Cabinet are as follows:

- **Policy Formulation**: The cabinet collectively decides on the state's policies across various sectors, providing direction and guidance for governance.
- **Administrative Oversight**: Ministers head different departments, and the cabinet ensures efficient administration, policy implementation, and coordination between departments.
- **Legislative Initiative**: The cabinet is responsible for initiating major legislation and ensuring that government policies are translated into laws.
- **Decision-Making**: It acts as the principal decision-making body, with ministers collectively making decisions on matters concerning the state's administration and affairs.
- **Collective Responsibility**: All ministers are bound by the principle of collective responsibility, meaning they must uphold the cabinet's decisions, even if they initially disagreed.
- **Coordination**: The cabinet ensures that government policies and programs are implemented smoothly by fostering cooperation and resolving issues between different ministries and departments.
- **Response to the Legislature**: Ministers are accountable to the state legislature, and the cabinet works to ensure that the government's actions are in line with the requirements of the assembly.

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Q9: Discuss some of the functions of State Legislature in India.

The functions of the Indian state legislature include making laws on subjects in the State and Concurrent Lists, controlling state finances by approving the budget and authorizing expenditure, and overseeing the executive by holding the Council of Ministers accountable. It also performs representative functions by representing the interests of the people and ensuring accountability, alongside constitutional functions such as amending certain parts of the Constitution. Key Functions of State Legislature are as follows:

- **Legislative Function:** The primary role is to make laws on subjects listed in the State List and the Concurrent List of the Seventh Schedule of the Constitution.
- **Financial Function:** The legislature controls the state's finances, including authorizing all expenditure, taxation, and borrowing. Money bills must be introduced first in the Legislative Assembly, and the legislature approves the annual budget.
- **Control Over Executive:** The Council of Ministers is responsible to the Legislative Assembly. The legislature holds the executive accountable through mechanisms like the Question Period and committee reviews, scrutinizing government policies and demanding explanations from ministers.
- **Representative Function:** The legislature acts as a forum to represent the diverse interests and needs of the people within the state, ensuring their voices are heard in the governance process.
- **Constitutional Function:** It has the power to make certain constitutional amendments and can reserve bills for the consideration of the President.

Q10: How State Legislature Works

- **Law-making Process:** Bills are introduced, debated, and passed by the legislature. Ordinary bills can be introduced in either house (if bicameral), but money bills originate in the Vidhan Sabha (Legislative Assembly).
- **Governor's Role:** After a bill is passed, it goes to the Governor for assent. The Governor can send it back for reconsideration, and if passed again by the legislature, the Governor must give assent.
- **Presidential Assent:** The Governor may reserve bills for the President's consideration, especially those affecting the powers of the High Courts, involving inter-state water projects, or restricting inter-state trade.

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Q11: Discuss Emergency Provisions in India.

The Indian Constitution's emergency provisions found in Part XVIII (Articles 352–360), grant the President exceptional powers to address national crises like war, internal armed rebellion, breakdown of constitutional machinery in a state, or financial instability.

These provisions include National Emergency (Article 352), which deals with threats to India's security; President's Rule (Article 356), which imposes state-level emergencies when a state's government fails; and Financial Emergency (Article 360), triggered by threats to India's financial credibility. Emergency powers are subject to parliamentary approval and provide mechanisms for swift action while protecting the nation's integrity during extraordinary circumstances.

**Types of Emergencies**

- **National Emergency (Article 352):** This is declared by the President when India's security is threatened by war, external aggression, or armed rebellion.

- **President's Rule (Article 356)**: This allows the President to take over a state's administration if it's impossible to run the government according to the Constitution.
- **Financial Emergency (Article 360)**: The President can declare this if they are satisfied that India's financial stability or credit is at risk.

### **Key Characteristics**

- **Exceptional Powers**: These provisions empower the President with broad authorities to bypass normal procedures and act decisively during critical times.
- **Parliamentary Oversight**: Proclamations of National Emergency and President's Rule require approval from both houses of Parliament to be extended beyond six months.
- **Protection of Fundamental Rights**: While most fundamental rights can be suspended during a National Emergency, Articles 20 (protection in respect of conviction for offenses) and 21 (protection of life and personal liberty) remain in force.
- **Emergency in the Constitution's Part XVIII**: These provisions are outlined in Part XVIII of the Constitution of India, which addresses various forms of emergency.

### **Emergency Provisions in Indian Constitution [Advantages]**

- Emergency Provisions in Indian Constitution enable the central government to act quickly during times of war, rebellion, or financial breakdown.
- By centralizing power temporarily, these provisions help maintain political stability and national integrity, especially when state machinery fails.
- In situations like internal rebellion or state-level political instability, emergency provisions help restore governance and law enforcement mechanisms, ensuring the safety of citizens.
- During wartime or external threats, these powers allow the government to safeguard the country's sovereignty without being hindered by procedural delays.
- Financial Emergency (though never used) offers a legal mechanism to manage fiscal crises by directing both Union and State governments to prioritize essential expenditures.

### **Emergency Provisions in Indian Constitution [Criticism]**

- Emergency Provisions in Indian Constitution shifted the balance heavily in favor of the Union, reducing states to administrative units with little autonomy.
- History has shown that emergency powers can be misused for political gain. The 1975 Emergency under Indira Gandhi is a prime example, where democratic institutions were curtailed for personal and political reasons.
- National Emergency suspends Article 19 rights, and other rights can also be restricted. This compromises civil liberties and freedom of expression, often affecting dissenters and opposition voices.
- With Parliament and state assemblies under control, the checks and balances between organs of the state are weakened. The executive can dominate without sufficient scrutiny or accountability.
- Excessive concentration of authority in the hands of the Union executive dilutes the role of state governments and may lead to arbitrary governance.

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## TOPIC: MEANING OF CONSTITUTIONAL LAW & CONSTITUTIONALISM

**CONSTITUTIONAL LAW** is the field of study and the body of rules, doctrines, and principles that define and interpret a state's constitution, which is the supreme law outlining governmental structure, powers, and citizen rights.

**CONSTITUTIONALISM** is a political philosophy and system of governance where governmental power is limited by a constitution, emphasizing the rule of law, separation of powers, checks and balances, and the protection of individual rights to prevent abuse and tyranny.

- **Constitutional Law**: The set of laws, interpretations, and doctrines that explain and apply the principles within a nation's constitution.

**Purpose of Constitutional Law**: To provide a framework for interpreting the constitution, resolving ambiguities, and ensuring that governmental actions align with constitutional mandates.

**Function of Constitutional Law**: It focuses on the "how" of government – detailing the structure, organization, and operation of state organs and the division of power.

- **Constitutionalism** is defined as a political ideology and a system of governance that prioritizes limiting governmental power through a constitutional framework.

### Core Principles of Constitutionalism

- **Rule of Law**: The idea that all individuals and government entities are subject to the law.
- **Limited Government**: The belief that a constitution should place restraints on governmental authority to prevent abuses.
- **Separation of Powers**: Dividing governmental power among different branches to prevent anyone from becoming too powerful.
- **Checks and Balances**: A system where each branch of government can limit the powers of the others.
- **Protection of Individual Rights**: Safeguarding fundamental freedoms for all citizens.

**Function of Constitutionalism**: It acts as an "evaluative role," ensuring that the powers granted by the constitution are exercised responsibly and not abused. Constitutionalism fosters a culture of respect for constitutional principles and democratic values.

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### Q12: What is a Constituent Assembly?

The Constituent Assembly is an institution specifically conceived to design or amend a Constitution, with the authority to establish the norms that govern the political and social framework of a territory. In India, the Constituent Assembly was formed in November 1946 under the Cabinet Mission Plan (1946) as a partly elected and partly nominated body.

It convened for the first time on December 9, 1946, to draft and formulate the Constitution of India, seen as essential for implementing self-determination. After its final session on January 24, 1950, the Constituent Assembly served as the provisional Parliament from January 26, 1950, until the first general elections in 1951-52 established the new Parliament.

The Constituent Assembly of India was formed in 1946, fulfilling a longstanding demand from the Indian freedom movement for a body to draft a constitution for independent

India. The idea was first proposed in the 1930s by M.N. Roy, adopted by the Indian National Congress in 1935, and finally accepted by the British government in their 1940 August Offer. Under the Cabinet Mission Plan, the Assembly was established, with its first meeting on December 9, 1946. It was a partly elected, partly nominated body that drafted India's Constitution, which was adopted on November 26, 1949, and came into effect on January 26, 1950.

Nature of the Constituent Assembly:

- **Body:** It was a partly elected and partly nominated body.
- **Elections:** Members were indirectly elected by the members of the provincial legislative assemblies using proportional representation through the single transferable vote system.
- **Nomination:** Representatives from the princely states were nominated by their respective rulers.

CRITICISM OF CONSTITUENT ASSEMBLY

Several scholars and Constitutional experts have criticized the Constituent Assembly on various grounds. These are as follows:

- **Not a representative Body:** Its members were not directly elected based on the universal adult franchise
- **Not a Sovereign Body:** It was created by the British proposals, and its sessions were held with the permission of the British Government.
- **Time-Consuming:** It took an unduly long time to frame the Constitution; on the other hand, the American Constitution was formed in 4 months.
- **Dominated by Congress:** Granville Austin commented that, "The Constituent Assembly was one party body in an essentially one-party country. The Assembly was the Congress, and the Congress was India".
- **Lawyer-Politician Domination:** Scholars maintain that they dominated the Constituent Assembly and are not representative of other sections.
- **Dominated by Hindus:** Winston Churchill commented that the Constituent Assembly represents "Only one major community in India"

Despite these criticisms, we may assert that our founding parliament was a collection of India's finest, who helped make the Indian Constitution the most dependable and wisest among all national Constitutions.

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Q13: DISCUSS THE SALIENT FEATURES OF INDIAN CONSTITUTION

The Indian Constitution's salient features include it being the world's lengthiest written constitution, a blend of rigidity and flexibility, a parliamentary system with a strong centralizing tendency, the Rule of Law, a Fundamental Rights framework balanced by Directive Principles of State Policy and Fundamental Duties, and a commitment to Universal Adult Suffrage and a sovereign, secular, socialist, democratic republic.

NATURE OF THE CONSTITUTION

- **Lengthiest Written Constitution:** It is the most comprehensive and detailed written constitution globally, providing a clear legal framework for the nation.
- **Blend of Rigidity and Flexibility:** The Constitution allows for amendments through both simple (flexible) and special (rigid) procedures, making it adaptable to changing needs while maintaining stability.

- **Federal System with Unitary Bias:** It establishes a federal structure with two governments and division of powers but includes several unitary features like a strong central government and single citizenship, creating a unique balance.

### GOVERNANCE STRUCTURE

- **Parliamentary Form of Government:** India has a parliamentary system, emphasizing the co-operation between the executive and legislative branches, influenced by the British model.
- **Integrated and Independent Judiciary:** The constitution establishes a single, independent judiciary to uphold the rule of law and protect citizens' rights, free from executive influence.
- **Universal Adult Suffrage:** All adult citizens aged 18 and above have the right to vote, ensuring democratic representation.

### RIGHTS AND DUTIES

- **Fundamental Rights:** Part III of the Constitution guarantees fundamental rights to citizens, which are enforceable by the courts.
- **Directive Principles of State Policy:** These are guidelines for the government to establish social and economic justice, aiming to create a welfare state.
- **Fundamental Duties:** Added later, these are obligations of citizens to the nation, balancing the rights they enjoy.

### KEY PRINCIPLES

- **Sovereign, Socialist, Secular, Democratic, Republic:** The preamble declares India as these principles, highlighting its independence, social justice, religious freedom, democratic governance, and elective head of state.
- **Rule of Law:** It ensures that all individuals and the government are subject to the law, promoting equality and preventing arbitrary power.

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### TOPIC: GOVERNMENT OF INDIA ACT 1935

*The Government of India Act 1935 was a landmark legislation passed by the British Parliament to expand the governance of British India that came into effect on April 1, 1937.*

The Government of India Act 1935 was one of the most important legislative measures enacted by the British Parliament to govern British India. The Act marked a significant shift towards Indian self-government. It proposed a federal structure, granted provincial autonomy, and expanded the electoral base in response to growing demands for increased Indian participation in governance.

**Government of India Act 1935:** The Government of India Act 1935 was a significant constitutional reform enacted by the British Parliament with 451 clauses and 15 schedules. The Act granted provincial autonomy, expanded the electorate to 10%, and created a Federal Court. It introduced elected legislatures and Indian ministers but retained key powers for the British Crown and Governor-General, including control over defence, foreign affairs, and veto authority. These limitations fueled the demand for full independence.

### BACKGROUND OF GOVERNMENT OF INDIA ACT 1935

Several political events and demands for greater autonomy in India influenced the Government of India Act of 1935. The following are key events that led to the Act's formulation:

- **Montagu-Chelmsford Reforms (1919):** It introduced diarchy in provinces, giving elected Indian ministers control over certain areas. However, they fell short of self-government demands.

- Simon Commission (1927): The commission was formed to review the 1919 reforms and it faced protests for excluding Indians. Its 1930 report suggested major constitutional changes.
- Round Table Conferences (1930-1932): It was held in London; these meetings exposed divisions among Indian leaders and emphasized the need for broader reforms.
- Communal Award (1932): Proposed separate electorates for religious communities, complicating the constitutional landscape.
- White Paper (1933): It laid the basis for the Government of India Act 1935.

### SIGNIFICANCE OF GOVERNMENT OF INDIA ACT 1935

The Government of India Act 1935 significantly impacted India's constitutional development and was the core foundation for the making of the constitution. Its significance can be understood through several key aspects:

- Foundation for Federalism: Established a framework for federalism, though it was not fully implemented; this concept later became central to the Indian Constitution.
- Provincial Autonomy: Abolished diarchy and granted significant control to provincial governments, enhancing self-governance and Indian participation in administration.
- Electoral Base Expansion: Increased the electorate to about 10% of adults, enabling greater political participation and fostering democratic governance.
- Blueprint for Future Developments: Many of its provisions, such as power division, bicameral legislatures, and minority rights protections, influenced the Indian Constitution.
- Encouragement of Political Mobilization: Fostered the rise of political parties and awareness, providing a platform for Indian leaders to shape future governance.

### PROVISIONS OF GOVERNMENT OF INDIA ACT 1935

The Government of India Act of 1935 established an All-India Federation, provincial autonomy, and bicameral legislatures, which increased local power. Despite these changes, the central government remained under British control, and the Act was enforced in April 1937.

The key provisions that reshaped the constitutional framework of British India are:

- All-India Federation: The Act proposed a federal structure for India, creating a federation of provinces and princely states. However, the federation never fully materialized due to the reluctance of many princely states to join.
- Provincial Autonomy: Provinces were granted substantial autonomy, allowing them to govern themselves in most areas, except for matters specified as central.
- Bicameral Legislature: It established a bicameral legislature at the provincial level in some provinces (Madras, Bombay, Bengal, United Provinces, Bihar, and Assam), consisting of a Legislative Assembly and a Legislative Council.

**\*\* Division of Powers:** The Government of India Act of 1935 divided powers between central and provincial governments into three lists.

- Federal List: Exclusively under central government control, covering defence, foreign affairs, and communications.
- Provincial List: Solely under provincial jurisdiction, including police, public health, and agriculture.
- Concurrent List: Shared authority between central and provincial governments, covering subjects like criminal law and marriage.
- The Viceroy retained control over unspecified subjects to protect British interests, but the proposed federation failed as many princely states refused to join.

**Expansion of Franchise:** Voting rights were extended to approximately 30 million people or roughly 10% of the population. The extension was based on criteria such as property, education, and income, which significantly increased the electorate compared to previous reforms.

- **Federal Court:** It provided for the establishment of a Federal Court, which was established in 1937. Nonetheless, the Privy Council in London remained the final court of appeal.
- **Communal Representation:** The system of separate electorates was expanded to include not only Muslims, but also depressed classes (scheduled castes), women, and labour (workers), thereby expanding communal representation.
- **Retention of British Control:** Despite increased provincial autonomy, the British Crown maintained control, with the Governor-General and Governors exercising discretionary authority in defence, foreign affairs, and security.
- **Establishment of Public Service Commission's:** A Federal Public Service Commission, Provincial Public Service Commissions, and Joint Public Service Commissions were formed to oversee civil service recruitment and administration.
- **Abolition of the Council of India:** The Council of India, established under the Government of India Act of 1858, was abolished and replaced by a team of advisors for the Secretary of State for India, thereby centralizing administrative control.
- **Provisions for Joint Sitzings:** Joint Sitzings of the bicameral legislatures are permitted in the event of a legislative deadlock, as a means of resolving conflicts between the two houses.

#### REACTIONS ON GOVERNMENT OF INDIA ACT 1935

The Government of India Act of 1935 received mixed reactions but the Act ultimately failed to satisfy Indian demands, pushing the nationalist movement closer to the goal of full independence by 1947:

- **Indian National Congress (INC):** The INC criticized the Act for not granting full independence, opposing the limited provincial autonomy and continuing British control over key areas like defence and foreign affairs. They viewed it as a flawed step, falling short of India's aspirations for self-rule.
- **Muslim League:** While the Muslim League also wanted more significant reforms, they saw the Act as a step toward securing political representation for Muslims through separate electorates and reserved seats.
- **Princely States:** The princely states resisted joining the proposed federal structure, as they feared losing autonomy to the central government.
- **British Government:** The British saw the Act as a necessary compromise to maintain control while addressing growing Indian political demands. However, the Act's limitations led to intensified calls for complete independence.

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#### Q14: Discuss the OBJECTIVE RESOLUTIONS introduced by Jawaharlal Nehru

The Objective Resolution, introduced by Jawaharlal Nehru on December 13, 1946, in the Constituent Assembly, was a foundational document that outlined the guiding principles for the Indian Constitution.

It declared India as an Independent Sovereign Republic, established the ultimate source of power as the people, and aimed to secure justice, equality, and fraternity for all citizens, along

with safeguards for minorities and backward communities. This resolution served as the framework for the subsequent constitution-making process and is reflected in the Preamble of the Indian Constitution.

### **Key Aspects of the Objective Resolution**

- **Sovereign Independent Republic**: It proclaimed India as a sovereign and independent nation, with its powers derived from the people.
- **Democratic Union**: It envisioned India as a democratic union with autonomous constituent parts, offering a uniform level of self-government.
- **Justice, Equality, and Fraternity**: The resolution guaranteed fundamental rights, social, economic, and political justice, equality of status and opportunity, and freedom of thought, expression, belief, and worship for all citizens.
- **Safeguards for Minorities and Depressed Classes**: It assured adequate safeguards for minorities, backward areas, tribal communities, and other disadvantaged groups.
- **Preservation of National Unity**: It affirmed the resolve to preserve the unity and integrity of the nation.
- **International Peace and Well-being**: The resolution committed India to contributing to international peace and the welfare of humanity.

### **Significance of the Objective Resolution**

- **Framework for Constitution-Making**: The resolution provided the foundational ideals and the philosophical framework for the entire constitution-making process.
- **Preamble to the Constitution**: The principles laid down in the Objective Resolution are embodied in the Preamble of the Indian Constitution, shaping its core values and goals.
- **Popular Sovereignty**: It established the principle that the authority of the Indian government and its constitution comes from the people of India.

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### **Q15: Discuss the Indian Independence Act of 1947**

The Indian Independence Act of 1947 was a British Parliament act that granted India independence and partitioned it into two separate, sovereign dominions:

India and Pakistan. Passed in July 1947 and with royal assent on July 18th, it formally ended British authority in the subcontinent on August 15, 1947, establishing the two new nations and granting them dominion status.

The act also ended British supremacy over the princely states, allowing them to join either dominion or remain independent.

#### **\*\* Key Provisions of the Indian Independence Act of 1947**

- **Partition and Creation of Dominions**: The British Indian Empire was divided into two independent nations, India and Pakistan, on August 15, 1947.
- **Dominion Status**: Both India and Pakistan were granted dominion status, meaning they would be fully autonomous in their affairs but would retain the British monarch as their head of state and remain part of the British Commonwealth.
- **End of British Authority**: British authority over the Indian territories ceased to exist.

- Princely States' Choice: The act declared that the British suzerainty over the Indian princely states would end. These states were given the option to join either India or Pakistan, or to remain independent.
- Abolition of Certain Offices: The office of the Secretary of State for India and the Council of India were abolished, and the British Parliament could no longer legislate for the new dominions.
- Governor-General Role: A Governor-General was to be appointed for each dominion, acting as a constitutional head of state.
- Provisional Government: Until each dominion adopted its own new constitution, they were to be governed by the provisions of the Government of India Act of 1935, though they retained the authority to amend it.

#### Significance of the Indian Independence Act of 1947:

- The Indian Independence Act 1947 was a landmark act that finalized the end of the British Raj and marked the emergence of India and Pakistan as modern, sovereign nations.
- It set the stage for the formation of the new governments and the subsequent development of both India and Pakistan into their own constitutional frameworks.

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Q16. Discuss the various characteristic features and significance of The Preamble of the Constitution of India.

#### Preamble of the Constitution of India: Characteristics and Significance

The **Preamble to the Constitution of India** is a brief introductory statement that sets out the fundamental philosophy, objectives and ideals of the Constitution. It begins with the words “**We, the People of India**”, indicating that the Constitution derives its authority from the people. The Preamble was adopted by the Constituent Assembly on **26 November 1949** and came into force with the Constitution on **26 January 1950**. It declares India to be a “**Sovereign Socialist Secular Democratic Republic**” and promises to secure **Justice, Liberty, Equality and Fraternity** to all citizens.

#### Characteristic Features of the Preamble

**1. Popular Sovereignty**: The expression “**We, the People of India**” establishes the principle of popular sovereignty. It signifies that ultimate political power rests with the people and that the Constitution is created and accepted in their name.

**2. Nature of the Indian State**: The Preamble describes India as a **Sovereign, Socialist, Secular, Democratic Republic**. *Sovereign* means India is internally supreme and externally independent. *Socialist* reflects the commitment to social and economic justice. *Secular* signifies equal respect and protection for all religions. *Democratic* emphasizes government by the people, while *Republic* means that the head of the State is elected rather than a hereditary monarch.

**3. Commitment to Justice**: The Preamble promises **social, economic and political justice**. This demonstrates the Constitution's objective of eliminating social inequalities, ensuring fair economic opportunities and providing equal political participation.

**4. Liberty:** It guarantees **liberty of thought, expression, belief, faith and worship**. These ideals provide the philosophical foundation for several Fundamental Rights.

**5. Equality:** The Preamble promises **equality of status and opportunity**. It seeks to establish a society where discrimination and unjust privileges are eliminated and individuals have equal opportunities for advancement.

**6. Fraternity and National Unity:** The Preamble promotes **fraternity**, assuring the dignity of the individual and the **unity and integrity of the nation**. Fraternity is particularly important in a diverse country such as India.

**7. Constitutional and Aspirational Character:** The Preamble expresses the broad goals that the Constitution seeks to achieve. It serves as a statement of constitutional philosophy rather than a detailed provision governing administrative procedures.

### **Significance of the Preamble**

The Preamble is significant because it acts as a guide to understanding the Constitution. When the language of a constitutional provision is ambiguous, courts may use the Preamble to understand the objectives and constitutional philosophy behind that provision. In the *Kesavananda Bharati v. State of Kerala* (1973) case, the Supreme Court recognized the importance of the Preamble and held that it forms part of the Constitution. However, its provisions are not independently enforceable in a court of law.

The Preamble also provides a standard for evaluating constitutional laws and governmental policies. The principles of justice, liberty, equality and fraternity provide a normative framework for interpreting Fundamental Rights, Directive Principles and other constitutional provisions.

The **42nd Constitutional Amendment Act, 1976** made three important additions to the Preamble: **“Socialist,” “Secular,” and “Integrity.”** These additions reinforced values that were already substantially reflected in the constitutional framework.

Thus, the Preamble is often described as the **“identity card” or philosophical foundation of the Constitution**. It captures the vision of the Constitution-makers and reminds the State and citizens that Indian democracy is founded not merely on governmental institutions but also on the ideals of **justice, liberty, equality, fraternity, dignity and national unity**.

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Q17. Discuss the Fundamental Rights in Indian Constitution.

Fundamental Rights are the basic rights guaranteed to individuals by the Constitution of India to protect human dignity, liberty, equality and justice. They are contained in **Part III of the Constitution, Articles 12 to 35**.

Inspired partly by the Bill of Rights of the United States, these rights represent the constitutional commitment to a democratic society based on the rule of law. They protect citizens against arbitrary State action and provide conditions necessary for the development of an individual's personality.

Some Fundamental Rights are available only to citizens, while others are available to all persons, including foreigners. The Supreme Court acts as an important guardian of these rights through **judicial review** and constitutional remedies.

The Constitution originally provided seven categories of Fundamental Rights, but the **Right to Property** was removed from Part III by the **44th Constitutional Amendment Act, 1978**. It is now a constitutional legal right under **Article 300A**.

At present, there are six broad categories of Fundamental Rights.

The **Right to Equality (Articles 14–18)** ensures equality before law and equal protection of laws, prohibits discrimination on specified grounds, guarantees equality of opportunity in public employment, abolishes untouchability and abolishes titles.

The **Right to Freedom (Articles 19–22)** provides citizens with important freedoms such as speech and expression, peaceful assembly, association, movement, residence and profession, subject to constitutionally permitted reasonable restrictions. Article 20 protects persons in criminal proceedings, Article 21 protects life and personal liberty, and Article 22 provides safeguards against arbitrary arrest and detention. The Supreme Court has given Article 21 an expansive interpretation, incorporating several dimensions of a dignified life, including privacy.

The **Right against Exploitation (Articles 23–24)** protects individuals from trafficking, forced labour and employment of children in hazardous occupations.

The **Right to Freedom of Religion (Articles 25–28)** guarantees freedom of conscience and the right to profess, practise and propagate religion, while maintaining the constitutional balance between religious freedom, public order, morality and health.

The **Cultural and Educational Rights (Articles 29–30)** protect the language, script and culture of sections of citizens and provide minorities with the right to establish and administer educational institutions of their choice. These provisions are particularly significant in India's plural and multicultural society.

Finally, the **Right to Constitutional Remedies under Article 32** enables individuals to approach the Supreme Court for enforcement of Fundamental Rights. High Courts also possess extensive powers under **Article 226**. Courts may issue writs such as habeas corpus, mandamus, prohibition, certiorari and quo warranto.

Fundamental Rights are **not absolute**. The Constitution permits reasonable restrictions in the interests of national security, public order, morality, sovereignty and integrity of India, among other grounds. At the same time, constitutional courts ensure that restrictions do not become arbitrary or disproportionate.

Fundamental Rights therefore represent a balance between **individual liberty and legitimate public interest**. Their significance has expanded with changing social, technological and economic conditions. Rights such as privacy, dignity, equality and freedom of expression are increasingly relevant in the digital era, including issues involving surveillance, artificial intelligence, online speech and data protection.

Thus, Fundamental Rights form the **constitutional foundation of Indian democracy**, ensuring that governmental power remains subject to law and that every individual can enjoy liberty, equality and dignity.

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Q18. Discuss the concept of Fundamental Duties given in Indian Constitution.

Fundamental Duties are a set of moral, civic and constitutional responsibilities expected from every citizen of India. They are contained in **Part IV-A, Article 51A** of the Constitution.

Unlike Fundamental Rights, which primarily protect individual freedoms and can be enforced through courts, Fundamental Duties are generally **non-justiciable**, meaning that citizens cannot ordinarily be compelled by courts to perform them. Nevertheless, they have considerable constitutional and educational significance because they emphasise that rights and responsibilities must coexist in a democratic society.

The Fundamental Duties were originally introduced through the **42nd Constitutional Amendment Act, 1976**, on the recommendation of the Swaran Singh Committee. At that time, ten duties were incorporated into Article 51A.

Subsequently, the **86th Constitutional Amendment Act, 2002** added the eleventh duty, relating to education. Thus, Article 51A presently contains **eleven Fundamental Duties**.

These require citizens to respect the Constitution, its ideals and institutions, the National Flag and the National Anthem; cherish the ideals of the freedom struggle; uphold and protect India's sovereignty, unity and integrity; defend the country and render national service when called upon; promote harmony and brotherhood; renounce practices derogatory to the dignity of women; preserve India's rich cultural heritage; protect and improve the natural environment; develop scientific temper, humanism and the spirit of inquiry and reform; safeguard public property and reject violence; strive towards excellence in individual and collective activities; and provide educational opportunities to children between six and fourteen years of age.

Fundamental Duties are important because they strengthen the idea of **responsible citizenship**. A constitutional democracy cannot function effectively if citizens demand rights without recognizing their responsibilities towards society and the nation. For example, the duty to protect the environment complements constitutional and statutory environmental protections, while the duty to develop scientific temper encourages rational thinking and resistance to superstition and misinformation. Similarly, respecting national symbols and promoting harmony can contribute to national unity and social cohesion. The duty relating to education also recognises that parents and guardians have an important role in ensuring children's access to elementary education.

Although Fundamental Duties are not directly enforceable, they are not legally irrelevant. Parliament may enact laws giving effect to particular duties. Courts have also referred to them while interpreting constitutional provisions and assessing the reasonableness of certain laws and governmental measures.

They may therefore serve as constitutional principles for interpretation, civic education and public policy. At the same time, Fundamental Duties cannot be used to destroy or substantially

restrict Fundamental Rights. The Constitution maintains a balance between individual liberty and collective responsibility.

In contemporary India, Fundamental Duties have acquired additional relevance because citizens increasingly participate in digital spaces, environmental movements, public debates and democratic institutions.

Responsible citizenship today includes respecting constitutional values, avoiding violence and misinformation, protecting public resources, promoting social harmony and contributing constructively to national development.

In conclusion, Fundamental Duties represent the **ethical and civic dimension of the Indian Constitution**. They remind citizens that democracy is sustained not only by constitutional rights but also by responsible conduct. Although they are largely non-enforceable, their importance lies in cultivating constitutional morality, national responsibility and respect for the rights and dignity of others.

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Q19. Discuss the concept of Directive Principles of State Policy in Indian Constitution.

The **Directive Principles of State Policy (DPSP)** are contained in **Part IV of the Constitution of India, Articles 36 to 51**. They represent the ideals and objectives that the State should pursue while making laws and policies.

The Directive Principles were largely inspired by the Irish Constitution and reflect the vision of establishing a **welfare state based on social, economic and political justice**. Unlike Fundamental Rights, the DPSPs are **not enforceable by any court** under Article 37.

However, Article 37 declares them to be *fundamental in the governance of the country* and directs the State to apply them in making laws. Thus, although they do not create directly enforceable legal rights, they provide important constitutional guidance to governments.

The DPSPs seek to transform the political democracy established by the Constitution into a **social and economic democracy**. They include principles relating to social justice, economic equality, public welfare, education, health, workers' rights, rural development and environmental protection.

**Article 38** directs the State to promote the welfare of the people and reduce inequalities in income, status, facilities and opportunities.

**Article 39** seeks to ensure adequate means of livelihood, equitable distribution of material resources, prevention of concentration of wealth, equal pay for equal work and protection of children and workers.

**Article 39A** promotes equal justice and free legal aid.

**Article 40** directs the State to organise village panchayats.

**Article 41** deals with the right to work, education and public assistance in certain circumstances

**Article 42** calls for just and humane conditions of work and maternity relief.

**Article 43** promotes a living wage and decent conditions of work, and **Article 43A** encourages workers' participation in the management of industries.

The Constitution also contains principles concerned with broader social and cultural objectives.

**Article 44** directs the State to endeavour to secure a **Uniform Civil Code** for citizens.

**Article 45** provides for early childhood care and education for children below six years of age.

**Article 46** promotes the educational and economic interests of weaker sections, particularly Scheduled Castes and Scheduled Tribes.

**Article 47** directs the State to improve nutrition, standard of living and public health.

**Article 48** concerns agriculture and animal husbandry, while **Article 48A**, added by the **42nd Constitutional Amendment Act, 1976**, directs the State to protect and improve the environment and safeguard forests and wildlife.

**Article 50** seeks separation of the judiciary from the executive, and

**Article 51** promotes international peace and security.

The relationship between **Fundamental Rights and DPSPs** has been an important constitutional issue. Initially, Fundamental Rights were given greater judicial protection. However, the Supreme Court gradually developed the principle of **harmonious construction**, holding that both Parts III and IV are essential to the constitutional vision.

In **Kesavananda Bharati v. State of Kerala (1973)**, the Court recognised the importance of both Fundamental Rights and Directive Principles within the constitutional framework.

In **Minerva Mills v. Union of India (1980)**, the Supreme Court held that harmony and balance between Fundamental Rights and DPSPs are essential features of the Constitution. This approach emphasises that individual liberty and social welfare should complement rather than undermine each other.

The DPSPs have played a major role in shaping Indian public policy. Programmes relating to **Panchayati Raj, free legal aid, education, public health, environmental protection, social security, labour welfare and poverty reduction** reflect their influence. Although they are non-justiciable, they serve as a **constitutional compass for governance** and provide standards against which public policies can be evaluated.

In essence, the Directive Principles seek to build an India based not merely on political democracy but also on **social justice, economic equality, human dignity and inclusive development**.

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Q20. Discuss the features of Parliamentary System and Federal System in Indian context.

### Features of Parliamentary System and Federal System in the Indian Context

India's Constitution establishes a parliamentary form of government combined with a federal system, adapted to the country's unique social, political, geographical and historical conditions.

The parliamentary system primarily governs the relationship between the executive and legislature, while federalism determines the distribution of powers between the Union and the States.

### **1. Parliamentary System in India**

The Indian parliamentary system is largely influenced by the British model, but it operates within a written and supreme Constitution. **Article 74** provides for a Council of Ministers headed by the Prime Minister to aid and advise the President, while **Article 75** establishes the principle of collective responsibility to the Lok Sabha.

The major features of Parliamentary System in India are:

**Nominal and real executive:** The President is the constitutional or nominal head of the Union, whereas the **Prime Minister and Council of Ministers exercise real executive power**. At the State level, the Governor is the constitutional head, while the Chief Minister and Council of Ministers exercise actual executive authority.

**Collective responsibility:** The Council of Ministers is collectively responsible to the Lok Sabha. If the government loses the confidence of the Lok Sabha, the entire Council of Ministers must resign. This ensures executive accountability to the elected legislature.

**Fusion of powers:** Unlike a strict presidential system, there is a close relationship between the executive and legislature. Ministers are generally members of Parliament and participate directly in legislative proceedings.

**Prime Ministerial leadership:** The Prime Minister is the central figure in the parliamentary executive. The Prime Minister leads the Council of Ministers, coordinates government policies and advises the President regarding important constitutional appointments and other matters.

**Political accountability:** Parliament exercises control over the executive through questions, debates, motions, parliamentary committees and financial control. Thus, democratic accountability is an essential feature of the Indian parliamentary system.

### **2. Federal System in India**

India has a federal structure in which constitutional powers are divided between the **Union and State governments**. Articles 245–263 and the Seventh Schedule provide the basic framework for this division.

**Constitutional division of powers:** Legislative subjects are divided into the **Union List, State List and Concurrent List**. Parliament legislates primarily on Union List subjects, State Legislatures on State List subjects, while both can legislate on Concurrent List subjects, subject to constitutional rules.

**Written and supreme Constitution:** The Constitution clearly defines governmental powers, and neither the Union nor States can exercise unlimited authority. Laws inconsistent with the Constitution can be invalidated by the judiciary.

**Independent judiciary:** The Supreme Court acts as the guardian of the Constitution and settles disputes between the Union and States. Judicial review also protects the constitutional distribution of powers.

**Bicameral legislature:** The **Rajya Sabha** represents the States and provides an institutional mechanism for their participation in Union legislation.

**Financial federalism:** Constitutional provisions distribute taxation powers and revenues between the Union and States. Institutions such as the **Finance Commission** facilitate financial relations and help reduce regional disparities.

However, Indian federalism has several unitary features. Parliament has greater legislative and financial powers, residuary powers belong to the Union, and the Union can assume greater control during constitutional emergencies. Therefore, India is often described as a “**Union of States**” with a federal structure having a strong Union.

The Indian Constitution combines *parliamentary democracy with federal governance*. The parliamentary system ensures responsible and accountable government, while federalism facilitates the distribution of authority between different levels of government. At the same time, the Constitution strengthens the Union to maintain national unity and integrity.

**Thus, the Indian model represents a distinctive balance between democratic accountability, federal autonomy and national cohesion.**

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Q21. Discuss the features and significance of Centre-State Relations.

Centre–State Relations refer to the constitutional distribution of powers, responsibilities and financial resources between the Union Government and the State Governments in India. The Indian Constitution establishes a federal system with a strong centralising tendency to maintain national unity while allowing states sufficient autonomy to govern local matters. The framework is primarily contained in **Part XI (Articles 245–263)** and related provisions concerning finance and administration.

### **Features of Centre–State Relations**

**1. Legislative Relations:** The Constitution divides legislative powers between the Centre and the States through the Seventh Schedule, which contains the Union List, State List and Concurrent List. Parliament has exclusive power over subjects in the Union List, while states generally legislate on State List subjects. Both can legislate on Concurrent List matters, but in case of conflict, parliamentary legislation generally prevails. Parliament can also legislate on State List matters under special circumstances, such as a national emergency or when the Rajya Sabha passes a resolution in the national interest.

**2. Administrative Relations:** States are required to exercise their executive powers in conformity with parliamentary laws. The Union can issue directions to states in certain constitutional circumstances. Institutions such as the Inter-State Council facilitate consultation and coordination between the Centre and States. All-India Services, such as the IAS and IPS, also provide an important administrative link between the two levels of government.

**3. Financial Relations:** The Constitution distributes taxation powers and revenue sources between the Centre and States. Since the Centre has greater revenue-raising capacity while states

have extensive expenditure responsibilities, mechanisms such as **tax devolution, grants-in-aid and the Finance Commission** help address fiscal imbalances. The Goods and Services Tax (GST) has further strengthened cooperative financial decision-making through the GST Council.

**4. Emergency Provisions:** During emergencies, the federal structure becomes more centralised. Under **Articles 352, 356 and 360**, the Union may exercise enhanced powers relating to national security, state administration and financial stability. Article 356, dealing with President's Rule, is particularly significant because it permits the Union to assume certain functions of a state government when constitutional machinery fails.

**5. Cooperative and Competitive Federalism:** Modern Centre–State relations increasingly emphasise **cooperative federalism**, where both levels work together on national development programmes, infrastructure, health, education and economic policy. At the same time, **competitive federalism** encourages states to compete for investment, innovation, development and better governance.

### **Significance of Centre–State Relations**

Effective Centre–State relations are essential for maintaining **national unity and territorial integrity** while respecting regional diversity. India has substantial linguistic, cultural, economic and geographical differences, making an appropriate balance between central authority and state autonomy particularly important.

Strong relations facilitate economic development, efficient implementation of welfare programmes and coordinated responses to national challenges such as pandemics, disasters, internal security and economic crises. They also strengthen democratic decentralisation, allowing governments closer to citizens to address region-specific needs.

Furthermore, healthy federal relations promote constitutionalism, political stability and accountability. Institutions such as the Finance Commission, GST Council and Inter-State Council provide platforms for negotiation and coordination rather than unilateral decision-making.

Thus, Centre–State relations constitute the backbone of India's federal structure. The Constitution deliberately combines federal principles with a strong Union to balance unity with diversity, national interests with regional aspirations, and coordination with state autonomy. Their effective functioning is therefore crucial for India's democratic governance and inclusive development.

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Q22. Discuss in detail the Local Self Government – Constitutional Scheme in India.

Local self-government refers to the system through which people participate directly in the administration of their local areas through elected bodies. In India, local self-government has a long historical tradition, but it received a constitutional status through the 73rd and 74th Constitutional Amendments, 1992.

The 73rd Amendment deals with rural local government (Panchayats), while the 74th Amendment deals with urban local government (Municipalities). These amendments aimed to strengthen grassroots democracy, decentralise administrative powers, promote local development, and increase people's participation in governance.

**1. Constitutional Scheme for Rural Local Government:** The 73rd Constitutional Amendment Act, 1992 inserted **Part IX (Articles 243 to 243-O)** and the **Eleventh Schedule** into the Constitution. It provides a constitutional framework for Panchayati Raj Institutions (PRIs). Article 40 of the Directive Principles had earlier directed the State to organise village panchayats and give them necessary powers to function as units of self-government.

The Panchayati Raj system generally follows a three-tier structure:

- (1) The Gram Panchayat at the village level,
- (2) Panchayat Samiti at the intermediate/block level, and
- (3) Zila Parishad at the district level.

States having a population below 20 lakhs may choose not to establish the intermediate level. The Gram Sabha, consisting of persons registered in the electoral rolls of a village, provides a foundation for direct participation by citizens.

The Constitution provides for direct elections to Panchayats and a normal five-year term. Seats are reserved for Scheduled Castes and Scheduled Tribes in proportion to their population. Not less than one-third of the total seats and chairperson positions are reserved for women, while several States have subsequently increased women's reservation to 50%.

Article 243G empowers State Legislatures to devolve powers and responsibilities upon Panchayats for economic development and social justice. The Eleventh Schedule contains 29 subjects, including agriculture, rural housing, drinking water, roads, poverty alleviation, education, health, women and child development, and public distribution systems.

**2. Constitutional Scheme for Urban Local Government:** The 74th Constitutional Amendment Act, 1992 inserted Part IX-A (Articles 243P to 243ZG) and the Twelfth Schedule.

It establishes **three broad categories of urban local bodies**:

- (1) Nagar Panchayats for transitional areas,
- (2) Municipal Councils for smaller urban areas, and
- (3) Municipal Corporations for larger urban areas.

Municipalities are elected bodies with a **five-year term**, subject to constitutional provisions concerning dissolution and reconstitution. Reservation is provided for SCs, STs and women. The Twelfth Schedule contains **18 functions**, including urban planning, regulation of land use, roads, water supply, sanitation, fire services, slum improvement, urban poverty alleviation, and environmental protection.

**3. Finance and Elections:** The constitutional scheme also provides institutional safeguards for local bodies.

**State Election Commissions** supervise and conduct elections to Panchayats and Municipalities. **State Finance Commissions**, constituted every five years, review the financial position of local bodies and recommend principles concerning the distribution of financial resources.

**4. Significance:** The constitutional recognition of local self-government transformed Panchayats and Municipalities from largely statutory institutions into an important **third tier of democratic governance**. It promotes decentralisation, accountability, participatory democracy, social inclusion and locally responsive development.

However, effective decentralisation depends upon the actual transfer of **functions, funds and functionaries** by State Governments. Thus, while the Constitution provides a strong institutional framework, the success of local self-government ultimately depends upon genuine political, administrative and financial empowerment of local bodies.

\*\*\*\*\* GOOD LUCK & HAPPY LEARNING\*\*\*\*\*